



POLICE DEPARTMENT CITY OF NEW YORK

November 3, 2017

MEMORANDUM FOR: Police Commissioner

Re: Sergeant Michael Miller
Tax Registry No. 921596
81 Precinct
Disciplinary Case No. 2016-16801

Charges and Specifications:

1. Said Sergeant Michael Miller, on or about June 12, 2016, at approximately 0315 hours, while assigned to the 81st Precinct and on duty, in the vicinity of Gates Avenue and Stuyvesant Avenue, Kings County, wrongfully used force, in that he pushed Jose Andujar about the chest, without police necessity. (*As amended*)
P.G. 221-02, Page 2, Paragraph 11 - USE OF FORCE

Appearances:

For CCRB: Timothy Jones, Esq.
Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

For the Respondent: John D'Alessandro, Esq.
The Quinn Law Firm
399 Knollwood Road, Suite 220
White Plains, NY 10603

Hearing Date:

September 29, 2017

Decision:

Not Guilty

Trial Commissioner:

ADCT Nancy R. Ryan

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on September 29, 2017. Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. The CCRB called Jose Andujar as a witness. Respondent called Police Officer Brian Hellberg as a witness and he also testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

After reviewing the evidence presented at the hearing, and assessing the credibility of the witnesses, I find Respondent Not Guilty of the charged misconduct.

FINDINGS AND ANALYSIS

In this case it is undisputed that on June 12, 2016, at approximately 0315 hours, Respondent, while on duty and assigned to anti-crime in the vicinity of Gates Avenue and Stuyvesant Avenue in the 81 precinct, did push Jose Andujar in the chest area. The push is captured on video. (CCRB Ex. 1) CCRB contends that the push constituted the use of unnecessary force by Respondent. Respondent contends that he pushed Mr. Andujar in a use of minimal force necessary after Respondent told Mr. Andujar he was being arrested and Mr. Andujar refused to turn around to be handcuffed.

Mr. Andujar testified that from approximately 9 p.m. on June 11, 2016, until approximately 3 a.m. on June 12, 2016, he was attending a party. (Tr. 15, 20) While at the party, he drank about two drinks, each of which contained approximately two ounces of Hennessy mixed with cranberry juice. (Tr. 18-19) He drank the first drink at about 10 p.m. and the second drink at around 1 or 2 a.m. He was taking normal sips of the drinks.

As he left the party he felt, "mellow." (Tr. 19-20) He testified on direct examination that he did not ingest any illegal substances but on cross-examination he testified that he might have been smoking marijuana, which he does not consider an illegal substance. (Tr. 20, 40-41) He had taken some [REDACTED] [REDACTED] earlier in the day. (Tr. 43)

After leaving the party, he was heading home when he saw a friend on Gates Avenue and yelled out, "Yo," to him. He saw police across the street but didn't pay attention to them because he wasn't doing anything wrong. Mr. Andujar testified that when he shouted, "Yo", the Respondent, who was on the other side of the street, approximately 100 to 200 feet away, told him to, "shut the fuck up." While still on the side of the street across from where Respondent was, Mr. Andujar said, "Suck my dick," to Respondent. (Tr. 16, 21-22)

Mr. Andujar testified that Respondent then came across the street, approached him and asked him what he said. Mr. Andujar told Respondent he said, "suck my dick," at which point the Respondent got, "abusive" with him and it continued from in front of the store to around the corner. He testified Respondent slammed him on his face and neck from behind and punched him four or five times in the face. (Tr. 17) Mr. Andujar further testified that he begged the officer to let him go but that Respondent said, "No, you want to be a dick," and then threw him in the back of the police car and took him to the precinct. (Tr. 17) Mr. Andujar was charged with resisting arrest, obstructing governmental administration and disorderly conduct. (CCRB Ex. 2)

While he was at the precinct, Mr. Andujar said he was being ignored and wasn't given medical attention for his [REDACTED], so he took off all his clothes in

the cell in order to get medical attention. At that point, an officer took him to the hospital. (Tr. 17-18)

Mr. Andujar was examined at [REDACTED] Hospital. He was screened there for the presence of drugs and alcohol in his system. His urine was [REDACTED] for [REDACTED] [REDACTED]. His blood alcohol level, from blood accessioned at 9:13 a.m. on June 12, 2016, was measured as [REDACTED], with the test defining 80 as intoxicated and 80-150 as Euphoria. The hospital records indicate Mr. Andujar had abrasions on his forehead and face. His chief complaint is listed as chest pain. A CT of his head and a chest x-ray found no evidence of trauma. He was given [REDACTED] and discharged. (Resp. Ex. A)

Mr. Andujar has filed a lawsuit against the NYPD and Respondent. The lawsuit is pending and Mr. Andujar expects to get money from it. (Tr. 32)

Respondent's partner from the evening in question, Police Officer Brian Hellberg, testified that he and Respondent, who is a superior he has worked with numerous times, were making an arrest for a gun possession in the vicinity of Gates and Stuyvesant Avenues around 3:15 a.m. on June 12, 2016. (Tr. 62, 69-70) They had seen an individual known to them as a gang member and someone who was in their cease fire program, which identifies people involved in violent felonies. (Tr. 63) After they spotted this individual that evening, he fled from them on a bicycle. They chased him. This individual then crashed the bicycle into a wall and fled on foot. Officer Hellberg lost sight of him, but a witness came forward to help the officers locate the man. Officer Hellberg and Respondent apprehended the man and recovered a firearm. (Tr. 63-64)

As Officer Hellberg and Respondent were walking the arrestee towards their car, Mr. Andujar started walking towards them and was cursing and yelling at them. (Tr. 63-64) Officer Hellberg testified that both Respondent and he told Mr. Andujar to leave and get away from them. Officer Hellberg sat in the police car with the arrestee while Respondent went to recover the bicycle. When Respondent picked up the bicycle he was being yelled at by Mr. Andujar and a crowd was starting to form on the sidewalk near the police car. Respondent placed the bicycle in the rear of the car and Officer Hellberg again heard him tell Mr. Andujar to leave. Officer Hellberg said they could not leave the scene at that point because they still needed to gather information from the witness who helped them make the arrest and they needed to establish a crime scene to see if there was any other evidence they needed. (Tr. 65)

Officer Hellberg testified that he looked in the rearview mirror and saw another individual try to take Mr. Andujar away from the scene. After that, Respondent crossed the street and, "at some point I guess they got into it because the next thing I saw when I looked across the street was Sergeant Miller chasing Mr. Andujar down Stuyvesant Avenue." (Tr. 66) Officer Hellberg described what he saw as a scuffle and testified he saw Mr. Andujar stumble back. (Tr. 78)

On cross-examination, Officer Hellberg acknowledged that in his CCRB interview on September 16, 2016, he told the investigator that with all that was going on with the crowd, there was no more time to walk around the scene but they had to, "get the guy in the car and go." (Tr. 68) Officer Hellberg testified that they didn't want to leave because they had things they wanted to do, but they couldn't just do that because of all that was going on. (Tr. 69) On re-direct additional portions of his answers at CCRB

indicated he told the investigators that Mr. Andujar, "was starting to create, a little bit of a not so good environment for the rest of us. Also we had some things to do in regard to this. We had a witness, but now that this is going on, now we can't go back and find him." (Tr. 82)

Officer Hellberg also acknowledged on cross-examination that at the CCRB interview he said that at the scene he had no idea that Mr. Andujar was intoxicated, while he testified in this proceeding that he had a "hunch" at the scene that Mr. Andujar was intoxicated, based on how he was cursing and continuing to come over to them. (Tr. 73)

Respondent testified that he is a sergeant special assignment, assigned to the 81 precinct. He has been in the Anti-Crime unit for over 12 years. (Tr. 84) During his career he estimated that he made approximately 300 gun arrests. (Tr. 86) On June 12, 2016, at 3:15 a.m., he saw a person known to be a gang member who was also a gun recidivist in the city wide cease fire program. Respondent approached the man, who was on a bicycle. The man rode away and Respondent chased him on foot for the length of a city block before the man crashed the bike and started to run. During the chase, the man dropped a bag with a gun in it. Respondent picked it up and continued the chase. He lost sight of the man when he came upon a block party of about 40 to 50 people. One person at the block party, who didn't want anyone to know he was helping the police, assisted the Respondent in identifying the man, who by now had shed his shirt. (Tr. 88-89) Respondent directed Officer Hellberg to put the man, who resisted arrest, into the car. (Tr. 90)

Respondent saw that there were a lot of other known violent gun offenders and shooting recidivists in the area around the arrest. He described the scene as a, "very

hostile and very dangerous environment,” for him and his partner. (Tr. 91) Respondent further testified that since the gun was discarded by the man, he was required to have the Evidence Collection team respond and he also had additional other things to do at the crime scene, which he described as, “enormous,” due to the distance covered during the chase. (Tr. 93) Respondent testified that he couldn’t leave the scene even after he recovered the gun and the bicycle, because he had to walk the Evidence Collection team through the scene to indicate to them where the items were recovered. (Tr. 94)

As Respondent was picking up the bicycle to bring it to the trunk of his car, he heard an individual, Mr. Andujar, coming towards him yelling and cursing. Another officer who had arrived on the scene in response to Respondent’s call for back-up told Mr. Andujar to keep moving. Respondent also told Mr. Andujar to keep moving. (Tr. 95) Respondent testified that the cursing and yelling did not bother him personally, but that the crowd was beginning to react to Mr. Andujar, thereby creating a problem and compromising the crime scene. On cross-examination, Respondent testified that Mr. Andujar’s cursing went on in intervals in an incident that was a couple of minutes long. It included a tirade by Mr. Andujar where he cursed for between 10 to 20 seconds. (Tr. 121-22)

Respondent testified that he saw another man who, “was doing everything he can to get Andujar to stop.” Based on his experience, Respondent felt it was best to let this second individual (the man in the video in the red shirt – CCRB 1), who was possibly a friend, take care of getting Mr. Andujar to stop. The man in the red shirt told Mr. Andujar to stop and tried to push him away and pulled him by the arm. Mr. Andujar went around the man and continued yelling and cursing. (Tr. 96-97) Respondent testified that

Mr. Andujar said to Respondent, "whatcha gonna do?" and also said, "come over here, I'll stick my fucking dick down your throat." (Tr. 98) On cross-examination when asked if he believed Mr. Andujar could have carried out this threat, Respondent answered that he could maybe attempt it, and that the violent nature of the threat made it obvious to him that Mr. Andujar was capable of violence. (Tr.114) Respondent acknowledged that Mr. Andujar never engaged him physically. (Tr. 114)

Respondent testified that there was a lot that happened that wasn't depicted on the short video clip. Specifically, he stated that before the start of what is shown in the video, Respondent saw the man in the red shirt push Mr. Andujar towards the corner but Mr. Andujar, "shoulders around" the man in the red shirt and made his way back to where the Respondent was. (Tr. 99) Respondent further testified that he saw the man in the red shirt, for a couple of minutes not shown on the video, "desperately trying to keep Mr. Andujar out of our crime scene." (Tr. 104)

Respondent testified that there came a point when he started to think he was losing control of the crime scene and he still had to collect the discarded shirt with an ID. He also still needed to keep track of where the cooperating witness was. (Tr. 97) After he got the bike in the car, Respondent made the decision that since he didn't have enough police presence on site to maintain the crime scene with the crowd reacting to Mr. Andujar, and since neither the police, through verbal instructions, nor even Mr. Andujar's friend, could get him to leave the crime scene, Mr. Andujar had to be arrested for obstruction of governmental administration to be removed from the scene. (Tr. 98, 105, 123) Respondent testified that he let Mr. Andujar go on with being aggressive and

inciting the crowd, "as long as I could until it became unsafe, until it was impossible for me to function in my duties." (Tr. 117)

Respondent testified that he walked from the middle of the street where the police car was towards Mr. Andujar and when he got near Mr. Andujar, he told him to turn around as he was under arrest. Mr. Andujar, who had his hand in his pants pocket, didn't turn around, but took a step towards Respondent. Respondent testified that he didn't know if Mr. Andujar was armed and seeing his hand in his pocket is, "the worst thing a cop can see." Respondent then pushed Mr. Andujar to, "knock him off his axis so I can take him into custody." Respondent continued by testifying, "What should have happened in a perfect world is I push him, he gets knocked off balance, I then lower my shoulder into his waist, I take him off his feet, and get him down to the ground and he's taken into custody. Now that's a tactic that is taught to us. The reason why I wasn't able to do that is because when I pushed him, the same guy, his friend, as you can see, grabs him by his shirt and yanks him away from me." (Tr. 100, 125-126) Respondent stated that he was taught the push maneuver in the Police Academy refresher course in plain clothes tactics. (Tr. 100) Respondent testified that he implemented the push in the manner he was taught in that he used an open hand palm push to the outside of the shoulder area and pushed as hard as he could. (Tr. 128) Mr. Andujar and the male in the red shirt who grabbed Mr. Andujar after the push, moved towards the corner. Respondent followed them and with the assistance of three or four other officers took Mr. Andujar, who fought the officers, into custody. (Tr. 103, 132)

On cross-examination, Respondent remembered giving a statement at CCRB where he said he put his hands up to stop Mr. Andujar from coming towards him and that

after he told Mr. Andujar he was under arrest, Mr. Andujar turned around and "ran". (Tr. 129) Respondent acknowledged that now that he could watch the video frame by frame, as opposed to trying to recall what happened in, "real time with everything that was going on at the time," it appears there were periods of time where Mr. Andujar was fleeing and also where he is trying to get back around the man in the red shirt to come towards Respondent. (Tr. 129-130) Respondent also testified that he put his hands up both to stop Mr. Andujar from advancing but also to push him, but he would not have pushed him had he complied with the order to turn around as he was under arrest. (Tr. 130)

Respondent is charged with wrongfully using force based on the push he gave to Mr. Andujar's chest area. The Patrol Guide section cited in the charges and specifications (221-02, Page 2, Paragraph 11) states that a uniformed member of the service/ supervisor on scene should, "Apply no more than the reasonable force necessary to gain control." It adds that the officer should "avoid actions which may result in chest compression, such as sitting, kneeling, or standing on a subject's chest or back, thereby reducing the subject's ability to breathe."

As an initial matter, while Respondent was questioned on cross-examination about whether palming someone on the chest could result in chest compression, it is clear to the court that the pushing action taken by Respondent, as seen on the video, does not constitute chest compression as contemplated by the language in PG Section 202-02, paragraph 11a and is therefore not at issue in this case.

The question we are left with is whether the push was more than reasonable force necessary to gain control. I find that it was not.

The court was given two versions of what happened that night and also was able to see a portion of the incident on a video. One version of the incident given by Mr. Andujar is that Respondent came over to him and pushed him merely because he was cursing at the Respondent. The other version is that Mr. Andujar refused to leave a large crime scene area where evidence and witnesses still needed to be fully processed and that despite instructions from the police to leave and despite efforts by another bystander to physically try to pull him away from the scene, Mr. Andujar continued to yell and curse at the police in a way that created a dangerous situation among a crowd of on-lookers, thereby necessitating his arrest. I find this latter version to be the more likely version of what happened that night.

Mr. Andujar's version of events is undercut by several things. First of all, as proven by his hospital records, he was [REDACTED] at the time of the incident and also [REDACTED] all of which could have impacted his demeanor and altered his recollection of what happened that night. Secondly, it is important to note that Mr. Andujar currently has a lawsuit pending against the city and Respondent based on the incident. He testified he hopes to recover some money from the suit. The fact the lawsuit is pending can be seen as creating a possible monetary incentive for Mr. Andujar to present his testimony in a way that best supports that recovery.

It also seems less likely to the court that Respondent, who has made hundreds of gun arrests and was in the process of making another one that night in an area where known gang members and violent crime recidivists were present, would divert his attention from finishing the tasks associated with that arrest to go angrily push an

individual who was cursing at him, with words the CCRB counsel argued in summation he was sure the Respondent had heard countless times before. In addition, Respondent's testimony was given in a credible manner based on his demeanor and the substance of his answers and was corroborated in significant portions Officer Hellberg's testimony and certain portions of the video.

In discussing the video in this case, it must be noted that there are several factors which detract from its use as evidence. First of all there is no audio portion. Neither Mr. Andujar's nor Respondent's words, as testified to, can be corroborated by it. Secondly, it does not show what Mr. Andujar was doing before the start of the video. Mr. Andujar testified he walked for about five minutes from the area where the party was to the area of the bodega where the push happened. He also testified that it took Respondent five to ten minutes to come over to him to ask him what he said after he said, "suck my dick." (Tr. 21-22) Unfortunately the video clip, which was obtained and provided by Mr. Andujar, does not afford the court a complete picture of the entire time that Mr. Andujar and Respondent were in the vicinity of the bodega. The fact that video provided by Mr. Andujar leaves out the portion of time during which he was clearly in the area based on his own testimony, leads the court to question whether those portions may have been unfavorable to Mr. Andujar's version of events and may have supported Respondent's testimony that he and other officers tried to get Mr. Andujar to leave and that a bystander also tried to take Mr. Andujar away from the area.

The video portion of the event which is in evidence does however corroborate certain things. It shows that Respondent did push Mr. Andujar. It also shows that, as testified to by Respondent, at video time stamp .01-.02, that Mr. Andujar steps in the

direction that Respondent is approaching him from, and that Mr. Andujar is leaning forward in Respondent's direction, with one hand in his pocket. Respondent can be seen walking up to Mr. Andujar and stopping for a second, as opposed to rushing towards him which would be more indicative of anger. This controlled approach is more supportive of Respondent's version that he told Mr. Andujar to turn around and then waited until Mr. Andujar did not comply before he used a push tactic to try to take him down to arrest him as opposed to Mr. Andujar's version that Respondent just came right up to him and became abusive. It also shows that at time stamp .05, right before the push, the bystander in the red shirt puts his arm across Mr. Andujar's chest in a manner such that he could pull him in the direction away from Respondent. This is somewhat more supportive of Respondent's testimony that the bystander was trying to control Mr. Andujar and remove him from the scene. The video also can be seen to corroborate Respondent's testimony that a crowd was forming which he had to deal with because in the seconds after Respondent follows Mr. Andujar and the man in the red shirt towards the corner, there are at least 15 bystanders all headed in the same direction right behind them.

I have considered CCRB's argument that the fact that it can be seen on the video that Respondent does not immediately grab Mr. Andujar after the push undercuts Respondent's testimony that he had told Mr. Andujar he was under arrest when he approached him. It would have been helpful to the court if Respondent had testified as to why he didn't immediately grab Mr. Andujar after he knocked him off balance. However, as there are several reasons why he chose not to do this immediately, including that he was outnumbered by Mr. Andujar and the bystander before the other officers were within grabbing distance of Mr. Andujar, or because he wanted to wait until he was

further away from the other members of the crowd who can be seen in the video to be nearby, the mere fact that he waited until he got to the corner to physically take Mr. Andujar into custody does not lead the court to conclude Respondent's testimony was fabricated regarding the timing of his intention to arrest him.

With regard to the push itself, I credit Respondent's testimony that it was a tactic he was taught in the police academy to take a suspect off balance in order to take them to the ground. In this case, prior to deciding to arrest Mr. Andujar and prior to using the push tactic, Respondent and other officers had tried to get Mr. Andujar to leave the scene through verbal commands. That did not work. Respondent also was aware that a bystander had been unsuccessful in removing Mr. Andujar from the scene by intervening physically by pulling him away and trying to block him from the area. At the point where Respondent was confronted with the need to arrest a clearly non-compliant, verbally hostile individual, who had taken a step towards Respondent with his hand in his pocket, I find that Respondent's use of the push was not more than a reasonable amount of force necessary to gain control. I therefore find Respondent Not Guilty.

Respectfully submitted,



Nancy R. Ryan
Assistant Deputy Commissioner Trials

APPROVED

DEC 07 2017

JAMES P. O'NEILL
POLICE COMMISSIONER